

See also: The Declaration of the Rights of Man 118–119 ■ The Geneva Conventions 152–155 ■ The Hague Conventions 174–177 ■ The Nuremberg trials 202–209 ■ The Universal Declaration of Human Rights 222–229



Dr. Raphael Lemkin, a Polish-Jewish international lawyer, campaigned vigorously after World War II for international legislation on genocide.

Axis Rule in Occupied Europe. British prime minister Winston Churchill had commented in a 1941 BBC broadcast that, “We are in the presence of a crime without a name.” Lemkin named it genocide.

The Convention’s Article 2 defines genocide as “any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such: (a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life

calculated to bring about its physical destruction in whole or in part; (d) imposing measures intended to prevent births within the group; and (e) forcibly transferring children of the group to another group.”

The Convention was soon ratified by 130 countries, but the US, despite early involvement, did not ratify until 1988. The Convention has often faced obstacles, including the requirement to prove intent. For example, Saddam Hussein (Iraqi president, 1979–2003) claimed his assault on Iraqi Kurds, which killed many thousands in the 1980s, was an attempt to restore order. Campaigners argued that the Convention should include patterns of actions that indicate purpose.

Early tribunals

The Genocide Convention was first applied in the 1990s; the international criminal tribunals for Yugoslavia (ICTY) and Rwanda

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Rape is no longer a trophy of war.

Navanethem Pillay
South African judge on the
International Criminal Tribunal
for Rwanda (1995–2003)

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(ICTR) refined the definition of genocide. In Rwanda’s case, it now included sexual violence and rape, after Hutus targeted Tutsi women for rape by HIV-infected men. The Yugoslavia tribunal meant targeting even a small part of a group could be a sign of genocidal intent.

While it continues to be refined, the Genocide Convention has already been crucial in enabling the international community to bring perpetrators of appalling crimes to justice by fair and legal process. ■



Rwandan refugees fled in 1994 to camps in neighboring states, such as Zaïre, but thousands died from diseases such as cholera.

Rwandan genocide

In just 3 months, between April and July 1994, up to a million Rwandans were massacred. The killers used machetes, clubs, and other blunt objects. Many people were herded into buildings that were doused with kerosene and set alight. Up to half a million women were raped.

The perpetrators were mainly Hutu, from the *Interahamwe* and *Impuzamugambi* youth militias, and most of the victims were Tutsi. The response of the international community was

thought to have failed badly. In the same year, the UN set up an investigative tribunal (ICTR) in Arusha, Tanzania. The entire process of investigation and trials took more than 20 years.

The trial of former Hutu mayor Jean-Paul Akayesu set the precedent for prosecuting genocidal rape. Hutu diplomat Jean-Bosco Barayagwiza and government minister Ferdinand Nahimana were convicted of genocide and sentenced to life imprisonment, reduced on appeal. In total, 93 people were put on trial, with 62 convicted.